

Court No. - 21

Case :- WRIT - C No. - 17033 of 2022

Petitioner :- M/S Yadav Speller

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Kumar Trivedi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Sameer Jain,J.

No urgency.

List in July, 2022, as fresh.

(Sameer Jain,J.) (Manoj Kumar Gupta,J.)

Order Date :- 15.6.2022

Vikram

Court No. - 3

Case :- WRIT - C No. - 17033 of 2022

Petitioner :- M/S Yadav Speller

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Kumar Trivedi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Arvind Kumar Trivedi, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Narendra Kumar Tiwari, learned counsel for the respondent no.3.

This writ petition has been filed praying for the following reliefs:

" I) Issue a writ, order or direction in the nature of certiorari to quash the impugned recovery citations dated 16.10.2021 issued to petitioner for the amount of Rs. 9,13,196/- and earlier one recovery Citation dated 10.07. 2017 issued to the husband of the petitioner for the amount of Rs. 7,44, 783/- (wherein the due recovery was Shown Rs. 37239/-) for the same meter connection no. 007753, issued by the respondent no. 3 (Annexure no. 1 to this writ petition)

ii) Issue a writ, order or direction in the nature of mandamus commanding and directing the concerned respondents not to adopt any Coercive method against the petitioner pursuance of the impugned recovery citation dated 16.10.2021 issued to petitioner for the amount of Rs. 9,13,196/- and earlier one recovery citation dated 10.07.2017 issued to the husband of the petitioner for the amount of Rs. 7,44,783/- (wherein the due recovery was shown Rs. 37239/-) for the same meter connection 007753, issued by the no. respondent no. 3.

Sri Narendra Kumar Tiwari, learned counsel for the respondent No 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.3 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 4.8.2022

T.S.